



CHAPTER xxiii.

An Act to confirm a Provisional Order under the Private A.D. 1912.
Legislation Procedure (Scotland) Act 1899 relating to
Prestonpans Combination Water Supply (Finance).
[25th June 1912.]

WHEREAS His Majesty's Secretary for Scotland has made
the Provisional Order set forth in the schedule hereunto
annexed under the provisions of the Private Legislation Procedure 62 & 63 Vict.
(Scotland) Act 1899 and it is requisite that the said Order should c. 47.
be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty
by and with the advice and consent of the Lords Spiritual and
Temporal and Commons in this present Parliament assembled
and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto Confirmation
annexed shall be and the same is hereby confirmed. of Order in
schedule.

2. This Act may be cited as the Prestonpans Combination Short title.
Water Supply (Finance) Order Confirmation Act 1912.

[Ch. xxiii.] *Prestonpans Combination Water* [2 & 3 GEO. 5.]
Supply (Finance) Order Confirmation Act, 1912.

A.D. 1912.

SCHEDULE.

PRESTONPANS COMBINATION WATER SUPPLY
(FINANCE).

*Provisional Order to extend the period for the Repayment of
Moneys borrowed by the County Council of the County of
Haddington the Town Council of the Burgh of Prestonpans
and the Town Council of the Burgh of Cockenzie and Port
Seton for the purposes of the Prestonpans Combination
Water Trust and for other purposes.*

WHEREAS the county council of the county of Haddington (hereinafter called "the county council") are the local authority for the said county in the execution of the Public Health (Scotland) Act 1897 and Acts amending the same (hereinafter called "the Public Health Acts") with respect to acquiring and holding land rating and borrowing:

And whereas the county of Haddington has for the purposes of the administration therein of the Public Health Acts been divided into districts in accordance with the provisions of the Local Government (Scotland) Act 1889 one of which districts is called the Western District:

And whereas the district committee of the Western District of the county of Haddington (hereinafter called "the Western District Committee") are the local authority for the execution within the Western District of the Public Health Acts except with respect to acquiring and holding land rating and borrowing:

And whereas in terms of section 131 of the Public Health (Scotland) Act 1897 a part of the Western District was by decree of the sheriff of the Lothians and Peebles dated the thirty-first day of March one thousand nine hundred formed into a special water supply district under the name of "the special water supply district of Prestonpans and Tranent (Landward)" (hereinafter called "the special water supply district"):

And whereas the provost magistrates and councillors of the burgh of Prestonpans (hereinafter called "the Prestonpans Town Council") and the provost magistrates and councillors of

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the burgh of Cockenzie and Port Seton (hereinafter called "the Cockenzie and Port Seton Town Council") are each the local authority for their respective burghs and previously to the formation of the Prestonpans Combination Water Trust hereinafter mentioned had each in execution of their powers and duties under the Burgh Police (Scotland) Acts 1892 to 1903 constructed works for the supply of water to the inhabitants of their respective burghs and are liable for the repayment of the balances of moneys borrowed for that purpose and still remaining unpaid: A.D. 1912.

And whereas in terms of section 130 of the Public Health (Scotland) Act 1897 the Western District Committee the Prestonpans Town Council and the Cockenzie and Port Seton Town Council were by minute of agreement dated the sixth ninth tenth twelfth nineteenth and twentieth and registered at Edinburgh in the books of the Lords of Council and Session the thirty-first all days of July one thousand nine hundred and with the sanction of the Local Government Board for Scotland combined together for the purpose of providing a new water supply in the special water supply district and the burghs of Prestonpans and Cockenzie and Port Seton:

And whereas by the said minute of agreement the said town councils conveyed to themselves and the Western District Committee their respective water supply undertakings and works for the joint use and benefit of the special water supply district and the burghs of Prestonpans and Cockenzie and Port Seton together with the liability for the outstanding water debts of the said burghs and they further agreed that the annual expense of maintaining the existing water supplies and of providing a new supply of water then in contemplation including the annual sums required for the payment of interest and instalments of principal in respect of the said outstanding loans should be apportioned upon and paid by the Western District Committee and the said town councils in proportion to the rental or valuation of the special water supply district and the said burghs respectively as shown in the valuation roll of the county of Haddington:

And whereas by the said minute of agreement the Western District Committee and the said town councils agreed to appoint and have accordingly appointed a joint committee for the purpose of the management and maintenance of the supply of

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A L. 1912. water to their respective districts to be known as the Prestonpans Combination Water Trust (hereinafter referred to as "the water trust") and to consist of seven members three appointed by the Western District Committee and two appointed by each of the said town councils :

And whereas upon the application of the county council made in pursuance of the said minute of agreement the Local Government Board for Scotland after due inquiry into a scheme for obtaining a new supply of water from Kidlaw on the Lammermuir Hills made an order on the twenty-first day of August one thousand nine hundred and one in execution of their powers in that behalf contained in the Public Health (Scotland) Act 1897 enabling the county council to purchase lands and water rights compulsorily for the purposes of the said scheme (hereinafter referred to as "the Kidlaw Water Supply") :

And whereas the county council on behalf of the Western District Committee and the town councils have purchased the said lands and have constructed the reservoirs and works for the Kidlaw Water Supply and an ample quantity of pure water is being furnished from the said works by the water trust within the special water supply district and the said burghs and there is now a surplus of water available to meet the requirements of an increased population in future years within those areas and in the adjoining parts of the county of Haddington and the storage capacity of the reservoirs can be increased in the future by the expenditure of a comparatively small amount of money :

And whereas the population of the areas supplied by the water trust is increasing and a further expenditure of money may be required in the immediate future in connection with the Kidlaw Water Supply :

And whereas by reason of many unforeseen and unavoidable difficulties having occurred in carrying out the works for the Kidlaw Water Supply the original estimates of the moneys required to be expended thereon amounting to about twenty-three thousand pounds have been very greatly exceeded and the total expenditure has amounted to forty-eight thousand three hundred and eighty-two pounds :

And whereas by section 140 of the Public Health (Scotland) Act 1897 the county council are required to repay

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any moneys borrowed by them for the purpose of constructing purchasing enlarging or reconstructing works for providing a supply of water within thirty years from the date of the loan: A.D. 1912.

And whereas by section 374 of the Burgh Police (Scotland) Act 1892 the said town councils are required to provide for the repayment of the moneys borrowed by them for water supply an annual amount equal to three per centum upon the sum or sums of money so borrowed and by section 48 of the Burgh Police (Scotland) Act 1903 it is enacted that in providing the sinking fund applicable for the repayment of any moneys borrowed by them for water supply purposes after the fifteenth day of May one thousand nine hundred and four the said town councils may in their option either do so in the manner provided by the before-mentioned provisions of the Burgh Police (Scotland) Act 1892 or they may annually or semi-annually during a period not exceeding thirty years from the date of borrowing set apart such sum as with the interest on any accumulations thereof shall be sufficient to pay off the whole principal and interest of the loan within the said period of thirty years :

And whereas the county council on behalf of the Western District Committee and the said town councils each on their own behalf in order to provide their respective proportions of the capital moneys expended on the Kidlaw Water Supply have been obliged to borrow from the Public Works Loan Commissioners sums which greatly exceed the contributions originally estimated to be necessary for the purpose and the said sums (hereinafter referred to as "the Kidlaw Water Loans") are repayable in thirty years from the respective dates of borrowing by equal annual payments of principal and interest and the amounts thereof are set forth in the schedule to this Order :

And whereas the water rates levied for water supply purposes by the county council and the said town councils respectively within the special water supply district and the said burghs to provide the said annual payments amount in the special water supply district to 3s. 4d. for each pound of assessable value in the burgh of Prestonpans to 3s. 6d. and in the burgh of Cockenzie and Port Seton to 4s. 1d. and the total rates levied for local government purposes in the Prestonpans portion of the special water supply district amount to 8s. 9 $\frac{3}{4}$ d. and in the Tranent portion of the special water supply district

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A.D. 1912. to 9s. 3½d. in the burgh of Prestonpans to 10s. 8½d. and in the burgh of Cockenzie and Port Seton to 11s. for each pound of assessable value and the said rates bear oppressively upon owners and occupiers of property in the special water supply district and the said burghs:

And whereas it is expedient to make provision for relieving the said owners and occupiers of some portion of the heavy burden of expenditure incurred by them in providing a water supply which will be available for use and for enlargement many years hereafter and to that end it is expedient to reduce the amount of the annual charge required to be made on the said owners and occupiers for interest and sinking fund by extending the period for the repayment of the moneys borrowed and still outstanding or any moneys hereafter to be borrowed by the said councils for the Kidlaw Water Supply and by enabling the said councils to repay the Kidlaw Water Loans and reborrow the same for an extended period and to confer upon the said councils such further powers as may be requisite for those purposes:

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows:—

Short title.

1. This Order may be cited as the Prestonpans Combination Water Supply (Finance) Order 1912.

Interpretation.

2. In this Order—

“The county” means the county of Haddington;

“The western district” means the western district of the county;

“The county council” means the county council of the county;

“The Western District Committee” means the district committee of the western district;

“The special water supply district” means the special water supply district of Prestonpans and Tranent (Landward) formed by decree of the sheriff of the Lothians and Peebles dated the thirty-first day of March one thousand nine hundred;

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“The Prestonpans Town Council” means the provost magistrates and councillors of the burgh of Prestonpans; A.D. 1912.

“The Cockenzie and Port Seton Town Council” means the provost magistrates and councillors of the burgh of Cockenzie and Port Seton;

“The town councils” means the Prestonpans Town Council and the Cockenzie and Port Seton Town Council;

“The burghs” means the burgh of Prestonpans and the burgh of Cockenzie and Port Seton;

“The water trust” means the Prestonpans Combination Water Trust formed by minute of agreement dated the sixth ninth tenth twelfth nineteenth and twentieth days of July one thousand nine hundred and made between the Western District Committee and the town councils and registered in the books of the Lords of Council and Session the thirty-first day of July one thousand nine hundred;

“The Public Health Acts” means the Public Health (Scotland) Act 1897 and any Act amending the same;

“The Kidlaw Water Loans” means the loans contracted by the county council and the town councils respectively for the purposes of the Kidlaw Water Supply as set forth in the schedule to this Order;

“The commencement of this Order” means the date of the passing of the Act to confirm this Order.

3.—(1) The county council and each of the town councils may borrow for the purpose of repaying forthwith their respective portions of the Kidlaw Water Loans the amount of the balances of those respective portions outstanding at the commencement of this Order. Power to re-borrow for repayment of Kidlaw Water Loans.

(2) Any moneys borrowed under this section shall be repaid within the period of fifty years from the date of the borrowing of the portion of the Kidlaw Water Loans for the repayment of which the said moneys have been borrowed.

4.—(1) The county council and the town councils may borrow for the purposes of the water trust such further sums as the Secretary for Scotland may approve and the Secretary Further borrowing for purposes of water trust.

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A.D. 1912. for Scotland shall have and may exercise in relation to such approval all the powers of section 93 of the Local Government (Scotland) Act 1889.

(2) Any moneys borrowed under the authority of this section shall be repaid within such period not exceeding fifty years as the Secretary for Scotland may prescribe when approving the loan.

Security for
loans.

5. In order to secure repayment of the moneys borrowed by the county council and the town councils respectively under the authority of this Order and the payment of interest thereon the county council may make and grant mortgages and other securities of the special water assessments and the public health general assessments and rents and charges leviable in the special water supply district in manner authorised by the Public Health (Scotland) Act 1897 and the town councils may make and grant mortgages on the securities of the water assessments and the rents rates and charges leviable in their respective burghs in manner authorised by the Burgh Police (Scotland) Acts 1892 to 1903.

Mode of re-
payment of
borrowed
money.

6. The county council and the town councils shall pay off all moneys borrowed by them under this Order either by means of sinking funds formed under the provisions of this Order or by equal yearly or half-yearly instalments of principal or of principal and interest combined or partly by one of those methods and partly by another or others of them.

Sinking
fund.

7.—(1) If the county council or either of the town councils as the case may be (in this section referred to as "the council") determine to repay by means of a sinking fund any moneys borrowed by virtue of this Order such sinking fund shall be formed and maintained either—

(A) By payment to the fund throughout the period prescribed for the repayment of the loan of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called "a non-accumulating sinking fund"; or

(B) By payment to the fund throughout the period prescribed for the repayment of the loan of such equal annual sums as with accumulations at a rate

not exceeding three per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called "an accumulating sinking fund."

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(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees are by law for the time being authorised to invest or in mortgages bonds debentures debenture stock stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority other than the county council or either of the town councils and the council may from time to time vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the council towards the equal annual payments to the fund.

(4) The council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the council:

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

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(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Order shall be paid by the council in addition to the payments provided for by this Order.

(7) If it appears to the Secretary for Scotland or to the council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose.

(8) If the council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the council be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the council may with the consent of the Secretary for Scotland reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the council be sufficient to repay the loan in respect of which it is formed within the prescribed period the council may with the consent of the Secretary for Scotland discontinue the annual payments to such sinking fund.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose as the Council may determine.

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8. If after having borrowed the sums of money by this Order authorised or any part thereof the county council or either of the town councils shall pay off the same or any part thereof otherwise than by means of annuities or instalments or of the sinking fund provided by this Order it shall be lawful for such council again to borrow the amount so paid off upon the same securities as those upon which the moneys so paid off were secured and so from time to time.

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Power to
re-borrow.

9. The respective treasurers of the county council and of each of the town councils shall for their respective councils within four months after the expiration of each year during which any sum is required to be paid as an instalment or to be set apart for a sinking fund transmit to the Secretary for Scotland a return in such form as may be prescribed by the Secretary for Scotland and verified by statutory declaration if so required by him showing the amount which has been so paid or set apart in respect of that year and the description of the securities upon which the same has been invested and also showing the purposes to which any portion of such sinking fund and the interest or income thereof have been applied during the same period and the total amount remaining invested at the end of the year and in the event of any default in making such return such treasurer so making default shall be liable to a penalty not exceeding twenty pounds which shall be recoverable by the Secretary for Scotland as a debt to the Crown is recoverable. If it appear to the Secretary for Scotland by any such return or otherwise that the county council or either of the town councils have failed to pay any instalment or to set apart the sum required by this Order to be set apart for the sinking fund or to make any increased payment thereto by this Order required or have applied any portion of the moneys set apart for that fund or any interest or income thereof to any purposes other than those authorised by this Order the Secretary for Scotland may by order direct that a sum not exceeding double the amount in respect of which such default shall have been made shall be set apart and invested as part of the sinking fund and such order shall be enforceable by decree of either division of the Inner House of the Court of Session in Scotland pronounced in a summary application presented for that purpose.

Annual
return to
Secretary for
Scotland
with respect
to sinking
fund.

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Application
of moneys
borrowed.

10. All sums borrowed by the county council and the town councils on mortgage or cash account or otherwise (except any sums borrowed for current expenses) shall be applied only to purposes to which capital is properly applicable.

Reservation
of prior
mortgages.

11. Nothing in this Order shall prejudice or affect the priority or other rights or remedies under any mortgages or securities or obligations granted by the county council or either of the town councils before the commencement of this Order and then subsisting.

Protection of
lender from
inquiry.

12. No person lending money to the county council or either of the town councils shall be bound to inquire as to the observance by the county council or either of the town councils of any provision of this Order or be bound to see to the application or be answerable for any loss or non-application of such money or any part thereof.

For appoint-
ment of a
judicial
factor.

13. The mortgagees of the county council or of either of the town councils under this Order may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a judicial factor. In order to authorise the appointment of a judicial factor in respect of arrears of principal the amount owing to the mortgagees by whom the application for a judicial factor is made shall not be less than three thousand pounds.

Costs of
Order.

14. The costs charges and expenses of and incident to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the county council and the town councils out of their respective funds and assessments as part of the expenses of the water trust. Provided that any moneys borrowed for the purposes of this section shall be repaid within five years from the commencement of this Order.

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SCHEDULE.

A.D. 1912.

PRESTONPANS COMBINATION WATER TRUST.

SUMS BORROWED FROM THE PUBLIC WORKS LOAN BOARD FOR THE KIDLAW
WATER SUPPLY (REPAYABLE IN 30 YEARS).

	Amount of Loan.	Balance due thereon at 16th November 1911.	Annual Pay- ment including Principal and Interest.	Rate per centum.	Date of repayment.
WESTERN DISTRICT COMMITTEE OF THE HADDINGTONSHIRE COUNTY COUNCIL.					
	£ s. d.	£ s. d.	£ s. d.		
	7,300 0 0	5,787 15 6	383 5 0	3½	3rd April 1932
	5,598 0 0	4,735 7 1	313 12 0	3½	3rd October 1933
	3,173 0 0	2,786 0 4	177 2 0	3½	3rd April 1935
	1,289 0 0	1,197 18 8	69 16 0	3½	3rd October 1937
	17,360 0 0	14,507 1 7	943 15 0		

BURGH OF PRESTONPANS.

	£ s. d.	£ s. d.	£ s. d.		
	6,943 0 0	5,554 18 10	364 1 0	3½	16th November 1932
	4,779 0 0	4,042 18 6	268 0 0	3½	16th May 1934
	2,822 0 0	2,477 17 11	157 10 0	3½	16th November 1935
	994 0 0	923 17 5	53 16 0	3½	16th May 1938
	15,538 0 0	12,999 12 8	843 7 0		

BURGH OF COCKENZIE AND PORT SETON.

	£ s. d.	£ s. d.	£ s. d.		
	5,783 0 0	4,623 2 7	303 12 0	3½	16th November 1932
	4,993 0 0	4,223 11 8	279 14 0	3½	16th May 1934
	3,000 0 0	2,633 15 0	167 10 0	3½	16th November 1935
	1,216 0 0	1,130 5 2	65 16 0	3½	16th May 1938
	14,992 0 0	12,610 14 5	816 12 0		
Grand Total }	47,890 0 0	40,117 8 8	2,603 14 0		

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